

M/S Nageshwar Papers Limited v. Dakshinanchal Vidyut Vitran Nigam Limited and Another

High Court of Judicature at Allahabad · Division Bench · 8 June 2017 · WRIT - C No. 26590 of 2017 · **Writ disposed of by consent applying settled law: the respondents were directed to supply the petitioner a list of test laboratories approved by the National Accreditation Board of Testing and Calibration Laboratory under Clause 5.4(a) of the U.P. Electricity Supply Code, 2005; the meter to be opened and tested only after the petitioner's choice from that list; and the respondents restrained from dismantling and testing the meter in their private lab.**

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HEADNOTE

On a writ by M/S Nageshwar Papers Ltd. seeking to restrain the licensee (Dakshinanchal Vidyut Vitran Nigam Ltd.) from dismantling, breaking open or testing its meter in the licensee's private laboratory, and to compel supply of the list of approved test laboratories under Clause 5.4(a) of the U.P. Electricity Supply Code, 2005, a Division Bench held the issue settled by its earlier decisions in *Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.* (2009 (2) AWC 1189) and *Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd.* (30.05.2014). Adopting *Amrawati Devi*, the Court reiterated that under Clause 5.6(c)(iii) a sealed defective meter is to be tested at the licensee's lab, an independent lab or by the Electrical Inspector as agreed by the consumer; that the consumer has a right to independent testing and the licensee a corresponding duty to apprise him of it, failing which the sealing proceedings are irregular and illegal; that a consumer is not deemed to have waived the right without knowledge of it (waiver requiring an intentional act with knowledge, per *Moti Lal Padampat Sugar Mills*); and that, after sealing, the licensee must serve a notice (printed in bold capital letters) for the consumer to exercise the testing option, whereafter a date is fixed for testing in his presence and the chosen agency's finding is final and binding. Applying this, the Court directed the respondents to supply the list of NABL-approved test laboratories under Clause 5.4(a), to open and test the meter only at the petitioner's chosen laboratory, and not to dismantle and test the meter in their private lab; the writ was disposed of accordingly.

FACTUAL SUMMARY

M/S Nageshwar Papers Limited, a consumer, filed WRIT-C No. 26590 of 2017 against Dakshinanchal Vidyut Vitran Nigam Limited and another. With the consent of the parties, the Division Bench disposed of the petition without calling for a counter affidavit. The sole relief sought was a mandamus restraining the respondents from dismantling, breaking open or testing the petitioner's meter in their private laboratory, together with a mandamus to supply the list of approved test laboratories as provided in Clause 5.4(a) of the U.P. Electricity Supply Code, 2005 so that the meter could be tested after the petitioner exercised its choice from among the approved labs. The Court noted that the issue stood settled by the Division Bench decisions in *Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.* (2009 (2) AWC 1189) and *Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd.* (Civil Misc. Writ Petition No. 55384 of 2009, decided 30.05.2014), and reproduced the relevant passages of *Amrawati Devi* (paragraphs 6 to 11) before issuing its directions.

REUSABLE CONSTRUCTIONS

1. Under Clause 5.6(c)(iii) of the U.P. Electricity Supply Code, 2005 a sealed defective meter is to be tested at the licensee's laboratory, an independent laboratory or by the Electrical Inspector as agreed by the consumer; the consumer has a right to independent testing and the licensee a corresponding duty to apprise him of that right, and failure to discharge that duty renders the sealing proceedings irregular and illegal. **p. p. 1 (following *Amrawati Devi*)**
2. After sealing a defective meter, the licensee must serve on the consumer a notice, printed in bold capital letters, to exercise his option to have the meter tested by the Electrical Inspector, at the licensee's laboratory, or by one of the approved outside agencies named in the notice; once the option is exercised a date is fixed for testing in the consumer's presence, and the decision based on the option and the test report is final and binding on both licensee and consumer. **p. p. 3 (following *Amrawati Devi*)**
3. Under Clause 5.4(a) the licensee must supply the consumer the list of approved test laboratories (accredited by the National Accreditation Board of Testing and Calibration Laboratories) and test the meter only at the consumer's

chosen approved laboratory; the meter cannot be dismantled and tested in the licensee's own private laboratory.
p. p. 3

4. A consumer is not to be treated as having waived the right to independent meter-testing merely by not objecting, unless he had knowledge of the right; waiver requires an intentional act with full knowledge of the right, and there is no presumption that everyone knows the law (Moti Lal Padampat Sugar Mills). p. p. 2 (following Amrawati Devi)

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.4(a)

RATIO

Consumer's right to have a sealed meter tested at a chosen approved (NABL) laboratory; no private-lab testing

QUESTION

Before testing a sealed defective meter, must the licensee supply the consumer the list of approved test laboratories under Clause 5.4(a) and test the meter only at the consumer's chosen approved lab, rather than in the licensee's own private laboratory?

HOLDING

Yes. Applying the settled law, the Court directed that the respondents provide the petitioner a list of test laboratories approved by the National Accreditation Board of Testing and Calibration Laboratory as provided in Clause 5.4(a) of the U.P. Electricity Supply Code, 2005, that the meter be opened and tested only after the petitioner's choice is made from that list, and that the respondents shall not dismantle the meter and test it in their private lab. p. p. 3

EVIDENCE *"it is directed that the respondents shall provide a list of test lab approved by National Accreditation Board of Testing and Calibration Laboratory as provided in Clause 5.4(a) of the Electricity Supply Code, 2005 and the meter shall be opened and tested only after the choice is given by the petitioner out of the list supplied to him."* p. p. 3

EVIDENCE *"It is further directed that the respondent shall not dismantle the meter and test the same in their private lab."* p. p. 3

FLAG Proper judgment with printed page numbers (pp. 1-3); pins reference the printed pages. Paragraph numbers 6-11 appearing in the text belong to the reproduced Amrawati Devi judgment, not to this order.

HOLDING-UNIT · UP-2005::5.6(c)(iii)

RATIO

Consumer's right to independent testing of a sealed defective meter and the licensee's duty to inform him of it

QUESTION

Does a consumer have a right to have a sealed defective meter tested by an independent agency of his choice, and must the licensee apprise the consumer of that right before testing?

HOLDING

Yes. Adopting the Division Bench in Amrawati Devi as settled law, the Court held that under Clause 5.6(c)(iii) a defective meter, after sealing in the consumer's presence, is to be tested at the licensee's lab, an independent lab or by the Electrical Inspector as agreed by the consumer; the consumer has a right to get the meter tested by an independent agency, and the authorities have a corresponding duty to apprise the consumer of that right, failure of which renders the entire sealing proceedings irregular and illegal. p. p. 1

EVIDENCE *"The consumer has a right to get the meter tested with independent agency. The authorities, therefore, have a corresponding duty to apprise the consumer of the right."* p. p. 1 (quoting Amrawati Devi, para 6)

EVIDENCE *"renders the entire proceedings for sealing the meter irregular and illegal."*
p. p. 1 (quoting Amrawati Devi, para 6)

PRINCIPLE TAGS

meter-testing-venue-option-must-be-offered-before-sealing Following Amrawati Devi, the licensee must apprise the consumer of, and offer, the option of testing venue (Electrical Inspector / licensee's lab / an approved outside agency) before testing a sealed defective meter; failure to do so renders the sealing proceedings irregular and illegal. Lead authorities: *Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd.* [SCJ-162]. p. p. 1, p. 3

waiver-requires-full-knowledge-of-right A consumer cannot be held to have waived the right to independent meter-testing without knowledge of the Clause 5.6(c)(iii) right; waiver requires an intentional act with full knowledge, there being no

presumption that everyone knows the law. Lead authorities: *M/s Moti Lal Padampat Sugar Mills Ltd. v. State of U.P.*. p. p. 2

meter-tested-only-at-consumer-chosen-approved-lab-not-licensee-private-lab The Court directed that the meter be tested only at a lab chosen by the consumer from the Clause 5.4(a) list of NABL-approved laboratories, and restrained the licensee from dismantling and testing the meter in its own private lab. p. p. 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER'S METER WAS IN FACT DEFECTIVE, AND ANY CONSEQUENTIAL ASSESSMENT

The Court directed only the procedure for testing (choice of an approved lab and no private-lab testing); it did not adjudicate the meter's actual condition or any assessment, which would follow the test result. p. p. 3

RELATED CASES — SEE ALSO

SCJ-162 — *Smt. Amrawati Devi* (2009) - the Division Bench precedent reproduced and followed here on the consumer's Clause 5.6(c)(iii) right to independent meter-testing and the duty to apprise.

SCJ-153 — *Mohd. Sagir* (2014) - the other Division Bench decision (against the same DVVNL) on which the Court held the meter-testing issue to be settled.

SCJ-161 — *Rituraj* - Clause 5.6(c)(iii) meter-testing option/procedure, a spine sibling on the same sub-clause.

SCJ-1557 — *Dr. Umesh Singh* - Clause 5.6(c)(iii) consumer's option in testing a defective meter, a spine sibling on the same sub-clause.

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Smt. Amrawati Devi v. Purvanchal Vidyut Vitran Nigam Ltd. and another</i> 2009 (2) AWC 1189 [SCJ-162] High Court of Judicature at Allahabad	Under Clause 5.6(c)(iii) a sealed defective meter is tested as agreed by the consumer; the consumer has a right to independent testing and the licensee a corresponding duty to apprise him, failing which the sealing proceedings are irregular and illegal; after sealing, a notice (in bold capitals) must be served for the consumer to exercise the testing option, and the resulting test report is final and binding.	Extensively reproduced (paragraphs 6-11) and followed as the settled law governing the relief granted. p. p. 1-3	Court	Followed
<i>Mohd. Sagir v. Dakshinanchal Vidyut Vitran Nigam Ltd. (Civil Misc. Writ Petition No. 55384 of 2009)</i> [SCJ-153] High Court of Judicature at Allahabad	A Division Bench decision (dated 30.05.2014, against the same DVVNL) settling the consumer's Clause 5.6(c)(iii) rights on meter-testing choice and procedure.	Cited alongside Amrawati Devi as settling the issue; followed. p. p. 1	Court	Followed
<i>M/s Moti Lal Padampat Sugar Mills Ltd. v. State of U.P. and others</i> AIR 1979 SC 621 Supreme Court of India	Waiver means the abandonment of a right; it must be an intentional act with full knowledge of the right, and there is no presumption that everyone knows the law.	Relied on (within the reproduced Amrawati Devi passage) for the proposition that there can be no waiver of a right without knowledge of it. p. p. 2	Court	Relied on

SCJ-2853 · *M/S Nageshwar Papers Limited v. Dakshinanchal Vidyut Vitran Nigam Limited and Another* · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.